

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: September 23, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

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To access Zoom by telephone:

• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS
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9:30 a.m. CALENDAR

LINE

2

**IN THE MATTER OF THE JOSEPHINE F. HEATH LIVING TRUST
FPR041167**

Petitioner Edwin Heath's Application for Reconsideration of the Granting of June 12, 2026 Ex Parte Application Permitting Sale

Opposition Of Trustee/Respondent Kathleen Maiman to Petitioner Edwin Heath's Request for Reconsideration of Ex Parte Order Granting Approval of Sale

PREGRANT ORDER

This matter was continued from July 29, 2026 to allow the moving party to address issues with the petition. Nothing has been filed by the moving party since the last hearing. The court has reviewed the opposition filed too late to be reviewed for the last hearing.

The court sustains the objection and dismisses the application for reconsideration.

LINE

3

**IN RE THE ESTATE OF EILEEN RUTH CONNELLY, DECEASED
FPR051867**

First and Final Report of Personal Representative; Petition for Final Distribution on Waiver of Account and for Payment of Compensation to Personal Representative

PREGRANT ORDER

This matter was continued from July 29, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to December 3, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. A personal representative is required to file an Inventory and Appraisal within four months after letters are first issued to a general representative. (Prob. Code §8800(b).) Letters were issued on August 21, 2023; thus, the final Inventory and Appraisal was due by December 21, 2023 but was not filed until May 27, 2026. The 29-month delay in filing is unexplained.
2. Pursuant to Probate Code section 12200(a), a personal representative is to file either a petition for final distribution or a status report within one year of the date letters are issued if no estate tax return is required, and within eighteen months of the date letters

are issued if an estate tax return is required. Here, letters were issued on August 21, 2023. As the estate is of an insufficient size to require an estate tax return, the petition for final distribution or a status report was due by August 21, 2024. No status reports were filed in 2024 or 2025, and no petition was filed until June 8, 2026. There is no explanation given for the delay.

3. The Proof of Service is missing the date on the server's signature. Additionally, notice was not given to the administrator of the estate of Patrick Connelly.

4. Petition, item 12: The petition states that the Inventory was filed November 27, 2023 with a value of \$188,761.03. The court file does not contain an Inventory filed on that date. The court file shows a partial Inventory filed March 11, 2024 with a value of \$197,651.66. The petition does not mention the corrected Inventory filed May 27, 2026 with the final, corrected value of \$178,347.57.

LINE

4

**IN RE THE ESTATE OF BETTY WADLEY, DECEASED
PR23-00420**

First and Final Account and Report of Administrator and Petition for Final Distribution and for Allowance of Statutory Compensation and Extraordinary Fees

PREGRANT ORDER

This matter was continued from August 17, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to December 7, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The petition states that the beneficiaries of the decedent were Anthony Wadley, Sr. and Larry Darnell. However, the decedent had two other predeceased children, "David Dixon, II" and "Michael Dixon" who left issue, who were not given notice and may be entitled to a share of the distribution of the estate. The petitioner shall file proof of service showing proper notice has been given. (Prob. Code §6402(a).)
2. Petition, item 16: The addresses for each heir were missing from the petition for final distribution and a statement indicating whether they are adults or minors. In addition, the petition was missing the date of death for the decedent's deceased children and the information for their issue. (Solano County Local Rule 7.66 d (1).)

3. Petition, item 17: The specific details of the proposed distribution must be provided. A description by reference to the inventory in percentages is not acceptable. (Local Rule 7.66(b).) It is unknown if the distribution is cash, personal property, real property, in whole or in part, and how much will be distributed in detail before or after the fees and costs. The inventory and appraisal shows that the estate had on half interest of real property, but the declaration included in the petition states that the estate recovered \$75,000 cash from the litigation settlement. The petitioner shall clarify if the estate holds cash or interest in real property.
4. Extraordinary Attorney Compensation: Extraordinary compensation “is within the discretion of the court” and the court may allow extraordinary compensation in an amount the court determines just and reasonable. (Cal. Rules of Court, Rule 7.703 (a); Prob. Code §10811(a).) The request for extraordinary attorney’s fees does not comply with California Rules of Court, Rule 7.702. There were also no invoices attached the attorney’s declaration as indicated in the petition. Billing statements are not sufficient to support extraordinary fees. (Solano County Local Rules, Rule 7.64a.)
5. The Notice of Hearing filed on July 13, 2026 includes a different name than the petitioner. The petitioner shall clarify and file and serve an amended notice, if necessary to provide proper notice.
6. The court notes that in a related matter, Solano Superior Court, Case Number FCS059553 *Brayton Purcell, LLP v. Betty Wadley, et al.*, the petitioner was to receive a settlement on behalf of the decedent’s estate and inventory the proceeds. The petitioner shall explain what happened to the proceeds from that case.

LINE

5

**IN THE MATTER OF THE STIRLING FAMILY TRUST
PR24-00651**

Mediation Review

PREGRANT ORDER

This matter was continued from April 7, 2025, July 7, 2025, September 22, 2025, October 20, 2025, December 17, 2025, February 25, 2026, and March 25, 2026. The court signed the order approving the accountings at the last hearing. Additionally, the parties stipulated at the last hearing to attend court-sponsored mediation.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Status of mediation.

LINE

6

**IN RE THE ESTATE OF MARY SUSAN MURPHY, DECEASED
PR25-00121**

First and Final Report of Administrator on Waiver of Account and Petition for Its Settlement; Petition for Reimbursement to Administrator for Funds Advanced the Estate; Petition for Final Distribution of Estate to Creditors Pro Rata; and Waiver of Compensation by Administrator and by Attorney

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

Petitioner to submit a conforming order for the court's review and signature.

All future compliance hearings are vacated.

LINE

7

**IN THE MATTER OF THE FRANK MARLBROUGH & ELAINE M.
MARLBROUGH FAMILY TRUST
PR25-00402**

Petition for Instructions on Trust Administration and Prohibiting Further Sale or Transfer of any Trust Assets. (CPC 17200(b)(5) and (9); CPC 16004.5)

Opposition and Objection to Petition for Instructions

Mediation Review

PREGRANT ORDER

This matter was continued from July 30, 2025, October 22, 2025, December 18, 2025, March 4, 2026, and April 8, 2026 to allow the parties to participate in a *Breslin* mediation.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Status of attending court-sponsored mediation.

LINE

8

IN RE THE ESTATE OF JOYCE ARLENE VASS, DECEASED
PR25-00499

First and Final Report of Personal Representative on Waiver of Accounting by Adult Beneficiaries; Payment of Statutory Attorney Fees to Administrator's Attorney, Reimbursement of Costs and for Final Distribution

PREGRANT ORDER

The court on its own motion continues this hearing to December 9, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. A personal representative is required to file an Inventory and Appraisal within four months after letters are first issued to a general representative. (Prob. Code §8800(b).) Letters were issued on December 8, 2025; thus, the Inventory and Appraisal was due by April 8, 2026 but was not filed until August 18, 2026. The 4-month delay in filing is unexplained.
2. Petition, item 13: Please provide a copy of the seller's settlement statement provided to the personal representative at the end of escrow. (Prob. Code § 10901.)
3. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 11601.

LINE

9

IN RE THE ESTATE OF PEDRO SOLORIO VERDUZCO, DECEASED
PR26-00093

First and Final Account and Report of Administrator; Waiver of Accounting; Waiver of Statutory Fees to Administrator; Allowance of Statutory Fees and Reimbursement to Attorney; and for Final Distribution

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as supplemented, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

All future compliance hearings are vacated.

LINE

10

**IN THE MATTER OF THE TRUDY A. ROBINSON REVOCABLE TRUST
PR26-00243**

Verified Petition to Compel Account of Trustee [Prob. Code §§16062, 16063, 17200]

PREGRANT ORDER

This matter was continued from June 8, 2026 and August 12, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed to resolve the outstanding issues, and no appearances were made at either hearing.

The court dismisses the petition.

LINE

11

**IN RE THE RANDOLPH MARTIN REVOCABLE TRUST,
DATED FEBRUARY 2, 2026
PR26-00299**

Petition to Appoint Successor Trustee to Fill Vacancy

PREGRANT ORDER

This matter was continued from July 22, 2026. The court appointed the petitioner as the temporary trustee at the last hearing. The court has reviewed the nomination of the petitioner by the father of the beneficiary Anthony Arguello.

The court finds all notices have been given as required by law. Absent any objections, the petition as supplemented is granted as prayed.

LINE

12

**IN RE THE ESTATE OF STEPHEN K. STONEWELL, DECEASED
PR26-00385**

Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from July 27, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the documents filed August 5, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The will of Stephen K. Stonewell dated April 1, 2026 is ordered admitted to probate.

The court appoints Thomas J. Tingley as executor with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for February 22, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for November 22, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

13

**IN RE THE COMPROMISE OF MOISES CHAVEZ-LARA, A MINOR
PR26-00512**

Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

PREGRANT ORDER

Counsel and petitioner are to appear. Remote appearances are approved.
